

24NNCV05732 24NNCV05732

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Case Number: 24NNCV05732 Hearing Date: September 24, 2026 Dept: T

Counts Law Firm, PC vs. Nia Jervier, et al.

Renewed Motion for Assignment

Moving Party: Plaintiff Counts Law Firm, PC

Responding Party: None

Tentative Ruling: Deny

BACKGROUND

On November 12, 2024, Plaintiff Counts Law Firm, PC ("Plaintiff") filed a verified complaint against Defendants Nia Jerver ("Jervier"), Makini Martin, and Makini Regal Designs, LLC (collectively "Defendants"), alleging the following causes of action: (1) breach of written contract; and (2) common counts.

On April 29, 2025, the Court entered a default judgment against Defendants for \$41,575.00 and ordered Defendants jointly and severally liable for the judgment. (Judgment, 4/29/25.)

On April 2, 2026, the Court granted assignment to Plaintiff of the entirety of Jervier's rights to the residual payments due or to become due from SAG-AFTRA to the extent necessary to satisfy the judgment.

After learning from SAG-AFTRA that Jervier's residual payments were made by various other entities, Plaintiff now moves for an assignment of Jervier's payment rights as to those entities pursuant to Code of Civil Procedure section 708.510.

No opposition was filed.

MOVING PARTY POSITION

Plaintiff states that the \$41,575.00 judgment and post-judgment interest remain wholly unpaid and that it recently discovered that Jervier earns and is entitled to recurring income paid by the Abrams Artist Agency, The Drama Dept., SisterLee Productions, Culture Machine, Code Red Productions, Homegrown Pictures, Roadside Attractions, Lionsgate Television, and Netflix including compensation and residual payments, which are assignable rights to payment under California law.

Plaintiff seeks an order assigning all of Jervier's assignable income from these entities to Plaintiff under Section 708.510, including the residual payments, as these are contractual rights to payment that are not exempt from assignment.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal Standard

Upon the application of a judgment creditor, the Court may order the judgment debtor to assign the creditor all or part of "a right to payment due or to become due, whether or not the right is conditioned on future developments." (Code Civ. Proc. § 708.510, subd. (a).) Assignable payment rights include, but are not limited to, the following: (1) wages due to the federal government that are not subject to withholding under an earnings withholding order; (2) rents; (3) commissions; (4) royalties; (5) payments from patent or copyright; and (6) insurance policy loan values. (Ibid.)

When determining whether to order an assignment, the Court may consider all relevant factors, including (1) the reasonable requirements of a judgment debtor, (2) payments the judgment debtor is required to make or that are deduction in satisfaction of other judgments and wage assignments, (3) the amount remaining due on the money judgment, and (4) the amount being received in satisfaction of the right to payment that may be assigned. (Code Civ. Proc. § 708.510, subd. (c).)

II. Discussion

Plaintiff seeks an order under Code of Civil Procedure section 708.510 assigning "[a]ll rights to payment due or to become due to Judgment Debtor Nia Jervier, including but not limited to Abrams Artist Agency, The Drama Dept., SisterLee Productions, Culture Machine, Code Red Productions, Homegrown Pictures, Roadside Attractions, Lionsgate Television, Netflix, and any payroll company, residual administrator, distributor, production company, talent agency, loan-out entity, or other entity obligated to make payments to Defendant arising from her acting services or residual rights, to the extent necessary to satisfy the outstanding judgment, accrued interest, and allowable costs." (Proposed Order, at p. 1.)

Although Plaintiff seeks an assignment of all rights to payment arising from Jervier's contractual relationship with these entities, Plaintiff fails to establish that all of these rights are assignable under California law. Specifically, in its comment to Section 708.510, the Legislative Committee noted that "[t]his section does not make any property assignable that is not already assignable." This limitation on Section 708.510's reach is also consistent with Code of Civil Procedure section 703.030, which provides that, "[e]xcept as otherwise specifically provided by statute, property that is described in this chapter or in any other statute as exempt without making a claim is not subject to any procedure for enforcement of a money judgment." (Code Civ. Proc. § 703.030, subd. (b).) For instance, such exemptions without making a claim include, "[b]efore payment, benefits from a disability or health insurance policy or program." (Code Civ. Proc. § 704.130, subd. (a).)

Here, in support of the motion, Plaintiff's counsel attested that, "[f]ollowing entry of the Court's April 2, 2026 Assignment Order, Plaintiff learned that SAG-AFTRA does not typically function as the entity responsible for issuing Defendant's residual payments" and that "Plaintiff thereafter conducted additional investigation and identified the entities described herein through which Defendant has received, or may receive, compensation and residual payments." (Counts Decl. ¶ 5.) The entities identified in Plaintiff's counsel's declaration are "Abrams Artist Agency, The Drama Dept., SisterLee Productions, Culture Machine, Code Red Productions, Homegrown Pictures, Roadside Attractions, Lionsgate Television, Netflix." (Id. ¶ 5.) Counsel also submitted a copy of the judgment and IMDB profiles as supporting exhibits to Plaintiff's motion. (See Mot., Exhs. 1 and 2.) However, as there is insufficient evidence of Jervier's contractual relationship with these entities and the nature of the payment rights due to her therefrom, the Court finds that it lacks a sufficient factual or evidentiary basis to determine (1) if all of the payment rights due or to become due to Jervier from these entities are assignable and (2) whether these rights should be assigned based on all relevant factors, including the amounts being received from those assignable rights in satisfaction of the judgment.

Therefore, the motion is denied without prejudice.

RULING

Plaintiff Counts Law Firm, PC's Renewed Motion for Assignment is DENIED without prejudice.